



U.S. Department
of Transportation

Research and
Special Programs
Administration

FEB 28 1994

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 11217

EXPIRATION DATE: April 30, 1994

(FOR RENEWAL, SEE 49 CFR SECTION 107.105.)

1. GRANTEE: U.S. Department of Defense, Washington, D.C.
2. PURPOSE AND LIMITATION: This emergency exemption authorizes the one-time transportation, in commerce, of methylhydrazine, a Division 6.1 material, contained in four UN1A1 drums which do not meet all requirements of 49 CFR 173.226 subject to the conditions and limitations specified herein. This exemption provides no relief from any regulation other than as specifically stated herein.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR Sections 173.226(b).
5. BASIS. This emergency exemption is based on the application from the Department of Defense dated February 7, 1994 and additional information dated February 25, 1994, submitted in accordance with 49 CFR 107.113 and a determination that it is necessary to preclude serious economic loss.
6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous materials description/proper shipping name	Hazard Class/ Division	Identification number	Packing Group
Methylhydrazine	6.1	UN1244	I Hazard Zone A

7. SAFETY CONTROL MEASURES:

a. PACKAGING - Packaging prescribed is a UN1A1 stainless steel drum, tested and marked at the Packing Group I level for liquids with a specific gravity of at least 1.2, and a hydrostatic pressure test of 550 kPa. Only those drums identified and authorized for transportation under DOT-E 11077 may be used under the terms of this exemption. Drums must meet all the requirements of DOT-E 11077 except that the outer drum may be polyethylene and marked to the Packing Group II performance level.

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b. MARKING - In addition to the markings required by the applicable DOT or UN specification, each inner drum must be marked "DOT-E 11077" and each outer polyethylene drum must be marked "DOT-E 11217".

c. VEHICLE SPECIAL REQUIREMENTS - Shipments must be in enclosed van trailers, in exclusive-use-of-vehicle service. Drums, which must be securely blocked and braced, may not be stacked (double decked) within the transport vehicle. Shipments must be from one origin to one destination only, without any intermediate pickup or delivery. Each vehicle used to transport methylhydrazine under the terms of this exemption must have two drivers.

8. SPECIAL PROVISIONS.

a. Persons who receive the packages covered by this exemption may reoffer them for transportation provided no modifications or changes are made to the packages, all terms of this exemption are complied with, and a current copy of this exemption is maintained at each facility from which such reoffering occurs.

b. Shippers using the packaging covered by this exemption must comply with all provisions of this exemption, and all other applicable requirements contained in 49 CFR Parts 171-180.

9. MODES OF TRANSPORTATION AUTHORIZED. Motor vehicle.

10. MODAL REQUIREMENTS: A copy of this exemption must be carried aboard each motor vehicle used to transport packages covered by this exemption.

11. COMPLIANCE. Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Hazardous Materials Transportation Act:

- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Registration required by 49 CFR 107.601 et seq., when applicable.

No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect unless a regulation has been amended making the exemption no longer necessary.

12. REPORTING REQUIREMENTS. The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (49 CFR 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must inform the AAHMS, in writing, of any incidents involving the package and shipments made under the terms of this exemption.

Issued at Washington, D.C.:


Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

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(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.
Attention: DHM-31.

The original of this exemption is on file at the above office. Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

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